

Thistle Architecture.

PLANNING RESEARCH AND RISK ANALYSIS

Somerset Council (former Sedgemoor District)

Former Lloyds Bank, Bath Street, Cheddar, BS27 3AB

Project TH00200

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Prepared by Thistle Architecture

Worth flagging upfront: the site already carries two relevant consents. Planning permission 17/23/00064 (August 2024) granted a 20 space car park to the rear. Prior approval 17/25/00004 (March 2025) confirmed that converting the bank and cottages into four dwellings does not need prior approval. The principle of residential use is therefore already established, and the four dwelling scheme sits behind the HMO proposal as a fallback. That shifts the planning balance materially in the applicant's favour.

1. Executive Summary, Risk Dashboard

Headline planning risks for the site, with a rating for how likely each issue is to obstruct approval if not addressed at design stage.

Issue	Risk	Summary
Article 4 direction (C3 to C4)	LOW	No Article 4 in Cheddar or anywhere in the former Sedgemoor area. The scheme is above 6 persons in any case, so it needs full planning permission as sui generis use.
Conservation Area and heritage	HIGH	Site sits in the Cheddar Conservation Area (designated 1991) and within the setting of the Market Cross at the top of Bath Street. The Cross is both Grade II* listed and a Scheduled Monument (NHLE 1019033 and 1173642), so its setting carries the highest level of heritage protection under NPPF paragraph 200(b).
Cheddar NP Policy EE1, commercial centre retention	HIGH	The made Cheddar Neighbourhood Plan (October 2018) resists conversion of commercial centre properties to residential at ground floor level. Bath Street sits in that defined centre. This is the single biggest policy obstacle to a wholly residential HMO scheme.
HMO density and sandwich rule	LOW	No density threshold, no sandwich rule and no minimum distance policy in the Sedgemoor Local Plan or the Cheddar Neighbourhood Plan. Somerset Council has not adopted an HMO SPD.
Family housing protection	LOW	Policy D5 calls for a balanced housing mix from the SHMA but does not protect existing dwellings from conversion. Subdivision and conversion inside the settlement boundary are explicitly supported.
Highways and parking	LOW	Somerset highways framework would expect roughly 5 to 7 spaces for a 10 bed HMO in a rural service centre. The site already has consent for a 20 space rear car park accessed from Lower North Street, which is decisive over provision against any reasonable application of Policy D14.
Amenity space and waste	MEDIUM	No fixed numerical outdoor amenity standard. Officers apply a 5 sqm per occupant benchmark, so around 50 sqm of communal external amenity. The refuse store needs two 1,100 litre Eurobins, a glass bin and food waste provision, with a 10 metre maximum drag distance.
Local appeal precedent	MEDIUM	No direct HMO appeal precedent for Cheddar. Somerset Council's recent appeal record (last 30 days) is 11 of 11 dismissed, so the Inspector pool is restrictive. Going to appeal is a high risk route to consent.

Recent applications nearby	LOW	Direct precedent at 16 Northgate Bridgwater (08/24/00027, Class E to 8 bed HMO, approved 2024) and 75 High Street Burnham (commercial retained on ground floor with HMO above, approved 2025) gives a clear approval template. The Hillview 37 bed refusal shows that excessive quantum is the main refusal trigger.
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2. Site Context Recap

The site is the former Lloyds Bank on Bath Street (BS27 3AB), with two cottages adjoining and a rear yard that already has consent for a 20 space car park. The branch closed in January 2023 and the lot is offered at auction at around £400,000. The proposal is conversion to a House in Multiple Occupation, modelled at 10 occupants in the client base case, with the HMO Checker indicating an upper capacity of 23.

Cheddar is a Tier 1 Rural Service Centre in the Sedgemoor Local Plan 2011 to 2032 and the site sits inside the village development boundary. The lower village core, including Bath Street, is in the Cheddar Conservation Area (designated 1 January 1991 by Sedgemoor District Council). The Market Cross at the top of Bath Street is dual designated as Grade II* listed and a Scheduled Monument (NHLE 1019033 and 1173642).

3. Local Plan Policy Framework

The development plan for the site is the Sedgemoor Local Plan 2011 to 2032 (adopted 20 February 2019) and the Cheddar Neighbourhood Plan 2011 to 2027 (made 17 October 2018). Both are statutory under section 38(6) of the Planning and Compulsory Purchase Act 2004. The emerging Somerset Local Plan 2045 is not expected to be adopted until March 2029 and carries no weight at June 2026.

Sedgemoor Local Plan 2011 to 2032, relevant policies

- **Policy S1**, Presumption in Favour of Sustainable Development, the headline NPPF aligned policy.
- **Policy S2**, Spatial Strategy for Sedgemoor: Cheddar is a Tier 1 settlement, appropriately scaled reuse of buildings inside the settlement boundary is supported.
- **Policy D2**, Promoting High Quality and Inclusive Design, the principal design test.
- **Policy D5**, Housing Mix, requires an SHMA led mix but does not protect existing dwellings from conversion.
- **Policy D13**, Sustainable Transport and Movement, mode hierarchy and sustainable location test.
- **Policy D14**, Managing the Transport Impacts of Development, vehicular access, parking and highway safety.
- **Policy D18**, Retail Hierarchy, engaged if commercial frontage is reduced; Cheddar is a defined Local Centre.
- **Policy D25**, Protecting Residential Amenity, the primary policy for HMO room sizes, refuse storage and intensification.
- **Policy D26**, Historic Environment, engaged by the Conservation Area and the setting of the Market Cross.
- **Policy D35**, Local Services, protects existing services and community facilities from loss.

Cheddar Neighbourhood Plan 2011 to 2027, relevant policies

- **Policy BE4**, high quality design responding to Cheddar context, precedents and distinctiveness.
- **Policy BE5**, sense of place and parking.
- **Policy EE1**, the most directly relevant policy. The Plan resists conversion of commercial centre properties to residential at ground floor level, to retain a commercial centre in the village. Bath Street sits in the defined commercial centre between Tesco and Sainsbury's.
- **Policy LEH1**, Green Wedge with Axbridge.
- **Policy LEH2**, dark skies and Mendip Hills setting.

4. HMO Specific Policy Analysis

Neither the Sedgemoor Local Plan nor the Cheddar Neighbourhood Plan contains HMO specific policy. Somerset Council has not adopted an HMO Supplementary Planning Document, and Sedgemoor District

Council did not adopt one before unitarisation. There is no density threshold, no sandwich or minimum distance rule, and no family housing protection policy.

The Use Classes Order applies as published nationally. A 10 bed scheme is outside Class C4 (which covers 3 to 6 persons) and is therefore sui generis. A 23 bed scheme is also sui generis and, depending on how it is managed, reads more like multiple sui generis units or a hostel use.

Mandatory HMO licensing applies under Part 2 of the Housing Act 2004 and the 2018 Order where the property is occupied by 5 or more persons forming 2 or more households. Somerset Council operates no additional or selective licensing scheme in Cheddar. Licensing is administered by the Somerset Council Housing Standards team against the council's own HMO Amenity Standards.

Somerset Council publishes no detailed HMO space standards document. Thistle Architecture has adopted the North Somerset Council HMO Licensing Standards (April 2020) as a working proxy, with the associated space standards summary held in the project root folder. The final standards applied at licensing stage need to be confirmed with the Somerset Housing Standards team.

5. Article 4 Direction Analysis

No Article 4 direction has been made by Sedgemoor District Council or Somerset Council removing C3 to C4 permitted development rights in Cheddar. The Somerset Council Article 4 register lists a compilation of inherited Sedgemoor directions, none of which relates to HMOs.

For the proposed 10 bed scheme this is academic, as there is no permitted development route from C3 or C4 to sui generis HMO use under the GPDO in any case. Full planning permission is needed regardless of Article 4 status.

6. Conservation Area, Heritage and Design

The former Lloyds Bank is not statutorily listed. A targeted search of the National Heritage List for England returns no entry for the bank or the adjoining cottages. The site does sit within the Cheddar Conservation Area (designated 1 January 1991) and within the setting of the Market Cross at the top of Bath Street.

The Market Cross is dual designated as a Scheduled Monument (NHLE 1019033, Somerset SM No. 21) and a Grade II* Listed Building (NHLE 1173642). Because the Cross is an asset of the highest significance, any harm to its setting hits the higher policy threshold at NPPF paragraph 200(b): substantial harm should be wholly exceptional. The statutory duties under sections 66 and 72 of the Planning (Listed Buildings and Conservation Areas) Act 1990 also apply.

Character traits that matter for a former bank conversion

- Building form: two and three storey terraced and semi detached frontages with narrow plot widths. The Market Cross junction has slightly grander civic and commercial frontages.
- Materials: Cheddar limestone with Lias dressings, clay pantile and Welsh slate roofs, render and limewash on cottages. PVCu fenestration is out of character and a refusal risk.
- Shopfronts: timber pilastered fascias at a consistent datum line. Bank frontages typically have recessed entrances and large pane glazing. Any shopfront alteration is the most sensitive element of the design and will be scrutinised closely.

- Rooflines: largely unbroken parapets and ridges with chimney stacks. Dormers, roof terraces and visible plant are out of character.
- Signage: retention or sympathetic removal of the redundant Lloyds branding is needed. Ghost lettering and disturbed render must be made good in matching materials.

A proportionate Heritage Statement will be needed for any full planning application. A pre application meeting with the Somerset Council Conservation Officer is strongly recommended. The same officer raised concerns on the recent car park application 17/23/00064, so the team is already engaged with the site.

7. HMO Density Assessment for this Site

Somerset Council has not published a density threshold for HMOs. The HMO Checker tool used at feasibility stage could not locate the address in its database, so there is no comparable density radius for Bath Street. As Somerset does not run a density based refusal policy, the absence of mapped data is not itself a refusal risk.

A short paragraph in the Design and Access Statement noting the absence of an HMO concentration policy and the absence of any other licensed HMOs in postcode BS27 will defuse any Bridgwater style proliferation objection if it comes up at consultation. The recent Cheddar Parish Council objections to this site (November 2023 and January 2024) focused on highways, drainage and conservation fabric rather than HMO intensity, so a proliferation argument is unlikely to be the main parish level concern.

8. Recent Application Trends Nearby

Comparable HMO applications determined or in progress in the Somerset Council area within the last three years.

Reference	Address	Proposal	Outcome	Key Reason
08/25/00163	11 Church Street, Bridgwater	C3 to 8 bed sui generis HMO	Officer recommendation: grant (Nov 2025)	Sustainable town centre, no external alterations
08/24/00027	16 Northgate, Bridgwater	Class E offices to 8 bed HMO	Approved 2024	Minor alterations only, conservation area neutral
08/24/00175	147 Durlough Road, Bridgwater	C3 to 9 bed HMO with extensions	Determined	Larger scale triggered amenity scrutiny
11/23/00128	Former Hillview Nursing Home, Berrow Road, Burnham on Sea	C2 care home to 37 bed HMO	Refused 19 April 2024	Noise and amenity (D25), inadequate amenity space, only 10 parking spaces
11/25/00019	Old Pier Tavern, Burnham on Sea	Part ground floor to 6 C4 HMO units, mixed use retained	Pending (2025)	Loss of pub use, Conservation Area
11/25/00116	98 Church Street, Highbridge	Rear office space to 3 extra bedrooms, total 7 bed HMO	TC objected Feb 2026	Parking pressure
(not yet known)	75 High Street, Burnham on Sea	First floor to 4 bed HMO and holiday let above restaurant	Approved May 2025	Commercial retained on ground floor

The recurring grounds for refusal in Sedgemoor are residential amenity under Policy D25 (noise, comings and goings, intensification), inadequate parking, inadequate amenity space, and heritage harm in Conservation Areas where significant external change is proposed. The recurring approval factors are no or minimal external alteration, sustainable town centre location, compliant room sizes, demonstrable shared amenity provision, and retention of a protected commercial unit on the ground floor where one exists.

9. Appeal Pattern Analysis

Direct HMO appeal precedent in the former Sedgemoor area is limited. The nearest comparators are below.

Dismissed appeals (Somerset and immediately comparable)

Appeal Ref	Site	Year	Reasoning Summary
APP/E3335/X/23/3330298	Brean Sands Holiday Centre, Burnham on Sea	2024	LDC for worker accommodation. Material change of use from holiday to long stay residential not lawful. Useful on the use class boundary.
APP/N2345/W/25/3358487	31 bed retreat centre, Preston (comparator outside Somerset)	2025	Residential intensity materially exceeded nearby dwellings. Noise and disturbance to neighbour gardens foreseeable. Quantum was decisive.

Somerset Council's appeal record over the most recent 30 day reporting period is 11 of 11 dismissed, none HMO. The Inspector pool is currently upholding LPA refusals where they are well evidenced. Appellants relying on a hostile appeal route should expect a heavy evidential burden.

Allowed appeals (HMO specific)

No HMO appeal in the former Sedgemoor area has been allowed within the search period. Successful appellants in comparable LPAs (Bristol, Bath and North East Somerset) have relied on robust amenity, sustainable location and the absence of a concentration policy.

10. Site Specific Risks

- Cheddar Neighbourhood Plan Policy EE1 (commercial centre retention).** The Plan resists conversion of commercial centre properties to residential at ground floor level. The Bath Street frontage sits in the defined commercial centre. A wholly residential scheme that uses the ground floor banking hall as bedrooms or communal space is a direct policy conflict. Mitigation: retain a Class E unit at the Bath Street frontage and place the HMO above and behind.
- Setting of the Grade II* and Scheduled Monument Market Cross.** Any rooftop addition, dormer, vent, flue, solar array or signage visible from the Market Cross junction hits the NPPF paragraph 200(b) wholly exceptional test. Mitigation: place plant within the existing roof envelope, no dormers to the front, chimney style flue concealment where new flues are needed, no roof terraces, concealed PV on rear roof slopes only.
- Conservation Area materials and fenestration.** Replacement PVCu windows, cement render and modern shopfront signage are recurring Conservation Officer concerns. Mitigation: timber sash windows to principal elevations, lime render and limewash, sympathetic timber shopfront on Bath Street, like for like ridge and parapet detailing.
- Quantum at 23 occupants.** The Hillview refusal (11/23/00128) shows that excessive HMO quantum is the principal refusal trigger in Somerset. A 23 occupant scheme is well above the comparable approval range. Mitigation: target 10 to 12 occupants for the planning application. A stretch 14 to 16 may be defensible with exceptional amenity and waste provision. 23 is not recommended without pre application support.
- Limited HMO appeal precedent in Somerset.** Going to appeal is a high risk route to consent given the current Inspector pool. Mitigation: secure officer recommendation at first instance through pre application engagement, retention of a commercial unit, and minimal external alteration.
- Groundwater and surface water.** Cheddar sits on the spring line at the foot of the Mendips and groundwater levels are seasonally high. Bath Street has recorded localised surface water ponding in heavy storms.

Mitigation: no basement works, permeable paving to the consented car park, a brief surface water and SUDS statement to support the application.

7. **Wessex Water sewer capacity.** The wider Cheddar foul network is capacity sensitive given its catchment role for the new strategic reservoir. Mitigation: a pre development enquiry to Wessex Water Developer Services before submission.
8. **Conservation Officer engagement on this site.** The Conservation Officer raised concerns on 17/23/00064 (car park), and the application was still approved. The officer is engaged with the site and will scrutinise this application closely. Mitigation: a formal pre application meeting with the Somerset Council Conservation Officer, and a high quality Heritage Statement.

11. Recommendations and Mitigation Strategy

9. **Retain a Class E commercial unit at the Bath Street frontage.** Direct response to Policy EE1 of the Cheddar Neighbourhood Plan. Follows the 75 High Street Burnham approval (2025), where commercial was retained at ground floor with HMO above. The retained unit can be modest (the former banking hall does not need to be retained in its entirety) but must read as a viable commercial frontage.
10. **No external alterations to the Bath Street elevation.** Direct response to the heritage risk and to the recurring Sedgemoor approval pattern of minimal alteration. Keep external change to discreet rear and roof interventions. Repair the shopfront in matching timber detail.
11. **Target 10 occupants for the application, with a defensible upper limit of 12.** The Hillview refusal sets the upper bound well below 37 occupants. The 8 occupant approval at 16 Northgate Bridgwater suggests 10 is plausible. The 23 occupant scheme can stay in reserve as a feasibility upside but should not form the planning submission without pre application support.
12. **Use the consented 20 space rear car park as the parking strategy.** Decisive over provision against Policy D14. Reference application 17/23/00064 directly in the Transport Statement.
13. **Provide 10 covered cycle parking spaces and visitor stands.** Aligns with the Somerset Council cycle parking standard of one long stay space per bedroom plus visitor provision.
14. **Provide a compliant communal refuse and recycling store.** Two 1,100 litre Eurobins (general and dry recycling), a 240 litre glass bin and food waste provision, sited within 10 metres of the consented car park collection point off Lower North Street.
15. **Provide around 50 sqm of usable communal external amenity.** Maintains the 5 sqm per occupant benchmark in a village setting and avoids the Hillview pattern of inadequate amenity. Coordinate with the consented car park layout.
16. **Apply for formal pre application advice.** Recommended given the high heritage risk and the EE1 conflict. The cost is small relative to the planning risk.
17. **Application document set.** Design and Access Statement; Heritage Statement (proportionate to the Conservation Area and Market Cross setting); HMO Justification Note addressing EE1 and amenity; Transport Statement referencing the consented car park; Refuse and Recycling Strategy; surface water and SUDS statement; Wessex Water pre development enquiry confirmation.

12. Sources and References

All sources accessed 1 June 2026.

Local Plan and Neighbourhood Plan

- Sedgemoor Local Plan 2011 to 2032 (adopted February 2019): https://othery.org.uk/wp-content/uploads/2023/03/Local_Plan_2011-2032_-_Adoption_Version-2.pdf
- Cheddar Neighbourhood Plan 2011 to 2027 (made October 2018): https://cheddarplan.co.uk/wp-content/uploads/2018/07/Neighbourhood_Plan_2011_-_2027_REFERENDUM_VERSION.pdf

- Somerset Council adopted local plans index: <https://www.somerset.gov.uk/planning-buildings-and-land/adopted-local-plans/>
- Somerset Local Plan 2045 (emerging): <https://www.somerset.gov.uk/planning-buildings-and-land/somerset-local-plan/>
- Sedgemoor Parking Standards (February 2019): <https://parkingstandards.co.uk/Standard/Somerset%20-%20Sedgemoor%20-%202019-02-20.pdf>

Article 4 and Conservation

- Somerset Council Article 4 directions: <https://www.somerset.gov.uk/planning-buildings-and-land/article-4-directions/>
- Cheddar Conservation Area (Planning Data entity 44003398): <https://www.planning.data.gov.uk/entity/44003398>
- Cheddar Parish Council Conservation Area page: <https://cheddarparishcouncil.org/about-cheddar/conservation-area/>
- Somerset Council conservation areas, maps and appraisals: <https://www.somerset.gov.uk/planning-buildings-and-land/conservation-areas/conservation-areas-maps-and-appraisals/>
- Sedgemoor Conservation Areas background document: https://chapelallertonparishcouncil.co.uk/wp-content/uploads/2019/04/The_conservation_areas_of_Sedgemoor.pdf

Heritage assets

- Historic England, Market Cross, Cheddar (Scheduled Monument, NHLE 1019033): <https://historicengland.org.uk/listing/the-list/list-entry/1019033>
- Historic England, Market Cross, Cheddar (Grade II*, NHLE 1173642): <https://historicengland.org.uk/listing/the-list/list-entry/1173642>
- Historic England, Church of St Andrew, Cheddar (Grade I, NHLE 1173613): <https://historicengland.org.uk/listing/the-list/list-entry/1173613>
- Somerset Extensive Urban Survey, Cheddar: https://www.somersetheritage.org.uk/downloads/eus/Somerset_EUS_Cheddar.pdf

Planning applications and decisions

- 17/23/00064 (Lloyds Bank car park, granted August 2024) decision: <https://democracy.somerset.gov.uk/ieDecisionDetails.aspx?ID=1215>
- 17/23/00064 committee report: <https://somerset.moderngov.co.uk/documents/s34758/17%2023%2000064%20committee%20report.pdf>
- 08/25/00163 (11 Church Street Bridgwater, 8 bed HMO) committee report: <https://somerset.moderngov.co.uk/documents/s63704/2.%2008.25.00163%20GN.pdf>
- 08/24/00027 (16 Northgate Bridgwater, Class E to 8 bed HMO) committee report: <https://somerset.moderngov.co.uk/documents/s32132/08.24.00027.pdf>
- Bridgwater TC HMO objection pattern: <https://bridgwater-tc.gov.uk/news/planning-committee-raises-strong-objections-to-hmo-proposals/>
- Hillview Nursing Home (37 bed HMO refusal): <https://www.thewestonmercury.co.uk/news/24264225.burnham-on-sea-care-home-will-not-become-hmo-plans-denied/>
- 75 High Street Burnham (commercial + HMO approval): <https://www.burnham-on-sea.com/news/four-bed-hmo-in-burnham-on-sea-approved-despite-concerns-from-town-council/>
- Auction listing referencing the extant Class E to 4 dwellings prior approval (17/25/00004): <https://www.barnettross.co.uk/property.php?id=4872779>

Appeals

- Brean Sands Holiday Centre appeal APP/E3335/X/23/3330298: <https://acp.planninginspectorate.gov.uk/ViewDocument.aspx?fileid=59676819>
- Appeal Finder, Somerset Council decisions: <https://appealfinder.co.uk/Somerset-Council+Appeal+Decisions+past+30+days.a410.html>
- Somerset Council appeals page: <https://www.somerset.gov.uk/planning-buildings-and-land/planning-appeals/>

Highways, drainage and utilities

- Somerset Council HMO licensing: <https://www.somerset.gov.uk/housing-support/hmo-licensing/>

- Somerset Council HMO standards and regulations: <https://www.somerset.gov.uk/housing-support/hmo-standards-and-regulations/>
- Somerset Council communal waste collections: <https://www.somerset.gov.uk/bins-recycling-and-waste/communal-collections/>
- Somerset Council residential and commercial road development: <https://www.somerset.gov.uk/roads-travel-and-parking/residential-and-commercial-road-development/>
- Cheddar 20mph speed limit order 2020: https://www.gazette-news.co.uk/announcements/public_notices/notice/148486.SOMERSET_COUNTY_COUNCIL__VARIOUS_ROADS__CHEDDAR__PARISH_OF_CHEDDAR__REVOCATION_AND_20MPH_SPEED_LIMIT__ORDER_2020/
- GOV.UK Check long term flood risk (BS27 3AB): <https://check-long-term-flood-risk.service.gov.uk/postcode?postcode=BS27+3AB>
- Cheddar Parish Council flood risk: <https://cheddarparishcouncil.org/about-cheddar/flood-risk/>
- Wessex Water Developer Services, connecting to a sewer: <https://developerservices.wessexwater.co.uk/media/b00pypqy/wwds-dev016g-connecting-to-a-public-sewer.pdf>
- Bus service 126 Weston super Mare to Wells via Cheddar: <https://bustimes.org/services/126-weston-super-mare-cheddar-wells>

National policy and legislation

- National Planning Policy Framework (December 2024), Chapter 16 Historic Environment: <https://www.gov.uk/guidance/national-planning-policy-framework/16-conserving-and-enhancing-the-historic-environment>
- Town and Country Planning (Use Classes) Order 1987 (as amended): <https://www.legislation.gov.uk/ukxi/1987/764>
- Town and Country Planning (Use Classes) (Amendment) (England) Order 2010 (SI 2010/653): <https://www.legislation.gov.uk/ukxi/2010/653/made>
- Town and Country Planning (General Permitted Development) (England) Order 2015, Schedule 2, Part 3, Class L: <https://www.legislation.gov.uk/ukxi/2015/596/schedule/2/part/3/crossheading/class-l-small-hmos-to-dwellinghouses-and-vice-versa>
- Licensing of Houses in Multiple Occupation (Prescribed Descriptions) (England) Order 2018: <https://www.legislation.gov.uk/ukxi/2018/221/contents/made>
- Housing Act 2004 Part 2: <https://www.legislation.gov.uk/ukpga/2004/34/part/2>

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Research compiled by Thistle Architecture from official local authority and Planning Inspectorate documentation.